

Line 6

Case Name: *Wells Fargo Bank, N.A. v. Yvonne Trigos*

Case No.: 25CV465609

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 2033.280(b) to deem Plaintiff’s Requests for Admission, Set One (the “RFAs”) admitted by Defendant Yvonne Trigos (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Jan. 23, 2026).

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on November 12, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite her obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:4-7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on November 12, 2025, is deemed admitted by Defendant Yvonne Trigos.**

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Lal Rai v. Ford Motor Company, et al.*

Case No.: 25CV477349

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Hoblit Motors Ford (“Hoblit Motors”) moves under the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) and Code of Civil Procedure Section 1281.4 to compel arbitration and to stay this civil action pending completion of that arbitration. Notice of Motion (the “Motion”) at 1:3-2:3 (filed: Jan. 28, 2026).

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background Facts & Procedural Posture

Plaintiff Lal D. Rai (Plaintiff) purchased a 2024 Ford F-150 (Subject Vehicle) in October 2024 from Hoblit Motors Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

Legal Standards on Motion to Compel Arbitration

Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p. 6:18-21.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 *et seq.*) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.”